"§6-6-571

(a) The court ~~shall have the power to~~ may assess the cost of a hearing held pursuant to the terms of this division, including the fee of the guardian ad litem, to the plaintiffs~~;~~, provided~~, that should some of the defendants file~~ that if any defendant files counterclaims or ~~should certain persons intervene~~ any person intervenes, the cost shall be assessed by the court as justice may require.

(b) In any case where it is found that the defendant fraudulently created the instrument that is sought to be canceled, the plaintiff shall be entitled to recover all costs, including reasonable attorney fees, incurred in bringing the action to cancel the instrument."

"§13A-9-22

(a) A person commits the crime of fraudulent sale or lease of residential real property if, with intent to defraud, he or she does either of the following:

(1) Lists ~~or~~, advertises, or causes to list or advertise residential real property for sale knowing that he or she or the purported seller has no legal title or authority to sell the property.

(2) Rents ~~or~~, leases, or causes to rent or lease residential real property to another person knowing that he or she or the purported lessor has no legal ownership or other authority to lease the property.

(b) Fraudulent sale or lease of residential real property is a Class ~~A misdemeanor~~ D felony.

"§35-4-20